

Salient Features of the Constitution

The salient features of the Constitution, as it stands today, are as follows :

- i. **Longest Written Constitution** The Indian Constitution is the longest in the world. Originally, the Constitution had 395 Articles, 8 Schedules and 22 parts.
- ii. **Blend of Rigidity and Flexibility** The procedure of amendment of the Indian Constitution is partly flexible and partly rigid. Some provisions can be amended easily and some provisions can only be amended by passage in both Union Parliament and half of the State Legislatures.
- iii. **Parliamentary Government** India has a parliamentary system of government both, at the centre and in the states. The President is the head of the Union of India and the governors are head of the states. But they act on the advice of the Council of Ministers. They have nominal powers.
- iv. **Independent Judiciary** There is a single, integrated and unified judiciary in India. The Supreme Court is the highest court of the land. Both Supreme Court and high courts have been given extensive powers to interpret the Constitution and law under various provisions of the Constitution of India.
- v. **Federal System with Unitary Features** Our Constitution contains federal features of government like division of powers, written Constitution, independent judiciary and bicameralism but, also a large number of unitary features like a strong centre, single citizenship, flexibility of Constitution, integrated judiciary emergency provisions etc.
- vi. **Secular State** The Indian Constitution stands for a secular state i.e. all religions in our country have the same right and support from the state, it does not uphold any particular religion as the official religion of the Indian state.
- vii. **Universal Adult Franchise** Every Indian citizen (above 18 years) has a right to vote in the elections without any discrimination of caste, sex, relation etc.
- viii. **Emergency Provisions** Indian Constitution has special provisions to meet any extraordinary situation or emergency. During emergency the Central Government becomes powerful and state comes under the total control of it. During emergency our federal system becomes unitary without any amendment of the Constitution.

National Symbols

National Flag It was designed by **Pingali Venkayya** of Andhra Pradesh. On **22nd July, 1947**, it was adopted by Constituent Assembly. It follows 3 : 2 ratio between length and breadth of the flag. It has three colours saffron, white and green. Middle portion has Ashoka Chakra, in blue with 24 spokes.

National Emblem It has been taken from the **Sarnath** (Varanasi) Pillar of Ashoka and on 26th January, 1950. It was adopted by Government of India. The word *Satyameva Jayate* which was written at the base in Devanagari script (taken from *Mundaka Upanishad*) is the National Motto of India.

National Anthem It was written by **Rabindra Nath Tagore**. Its recitation period is 52 seconds. First time it was sung in Calcutta Congress Session on **27th December, 1911**. On 24th January, 1950, Constituent Assembly adopted it (*Jan Gan Man*).

National Song *Vandemataram* taken from Bankim Chandra Chatterji's work *Anandmath*, was officially adopted on 24th January, 1950. It was sung for the first time as Kolkata session of Congress in 1896.

National Calendar Based on the Saka Era, Chaitra is its first month and a normal year of 365 days along with the Gregorian calendar. It was adopted by the Central Government on 22nd March, 1957.

National Animal It is tiger. It has eight species around the world and Indian species is known as Royal Bengal Tiger. The majestic tiger (*Panthera Tigris*) is the National Animal of India.

National Bird Indian peacock (*Pavo Cristatus*). It is fully protected under the Indian Wildlife Protection Act, 1972.

The Preamble

- The Preamble means introduction or preface of the Constitution or essence of the Constitution.
- The Preamble of the Indian Constitution is based on the **Objectives Resolution** drafted and moved by Pandit Nehru and adopted by the Constituent Assembly.
- The idea of justice, social, economic and political have been taken from the Russian Revolution (1917).
- The idea of liberty, equality and fraternity have been taken from the French Revolution (1789-1799).

Preamble of India

We, the People of India, having solemnly resolved to constitute India into a sovereign socialist, secular, democratic, republic and secure to all its citizens.

Justice, social, economic and political.

Liberty of thought, expression, belief, faith and worship.

Equality of status and of opportunity and to promote among them all.

Fraternity assuring the dignity of the individual and the unity and integrity of the nation.

In our Constituent Assembly on this 26th day of November, 1949, do hereby adopt, enact and give to ourselves this Constitution.

Amendability of the Preamble

- Whether, the Preamble can be amended under Article 368 or not, this question arose for the first time in **Keshavananda Bharati Case** (1973). In this case, Supreme Court held that Preamble is the part of the Constitution and can be amended, subject to the condition that no amendment is done to the basic features of the Constitution.
- The Preamble has been amended only once so far, in 1976, by 42nd Constitutional Amendment Act, which added three new words **Socialist, Secular and Integrity**. This amendment was held to be valid.

IMPORTANT PROVISIONS OF THE CONSTITUTION

The Union and its Territories

Article 1 to 4 under part-1 of the Constitution deal with the Union and its Territory.

- **Article 1** Deals with name and territory of the Union. It describes India, that is **Bharat** as Union of States. The Territory of India includes territories of states, union territories and territories that may be acquired by the Government of India at any time.
- **Article 2** Admission or establishment of new states.
- **Article 3** Formation of new states and alteration of areas, boundaries or names of the existing states.
- **Article 4** Laws made under Articles 2 and 3 to provide for the amendment of the first and the fourth schedules and supplemental, incidental and consequential matters.

Reorganisation of State

- In 1953, State Reorganisation Commission was set-up under the Chairmanship of Fazl Ali, HN Kanhlu and KN Panikkar were the other two members of the commission. It suggested the reorganisation of 27 States of various categories in 16 States and 3 Union Territories.
- The State Reorganisation Act, 1956 was passed by Parliament as a result 14 States and 6 Union Territories were created on 1st November, 1956.

New States UT's Created After, 1956

Maharashtra and Gujarat 1960, Dadra and Nagar Haveli 1961, Goa, Daman and Diu 1961, Pondicherry 1962, Nagaland 1963, Haryana, Chandigarh 1966, Himachal 1971, Manipur, Tripura and Meghalaya 1972, Sikkim 1975, Mizoram, Arunachal Pradesh and Goa 1987, Chhattisgarh, Uttarakhand, Jharkhand 2000 and Telangana 2014.

CITIZENSHIP

The Constitution of India provides for single citizenship. There is no separate citizenship of state. *According to the Constitution, the following three categories of persons are entitled to citizenship*

- Persons domiciled in India.
 - Refugees, who migrated to India from Pakistan.
 - Indians living in other countries.
- **Article 5** Citizenship at the commencement of the Constitution.
 - **Article 6** Rights of Citizenship of certain persons, who have migrated to India from Pakistan.
 - **Article 7** Rights of Citizenship of certain migrants to Pakistan.
 - **Article 8** Rights of Citizenship of certain persons of Indian origin residing outside India.
 - **Article 9** Persons voluntarily acquiring Citizenship of a Foreign State not to be citizens.
 - **Article 10** Continuance of the Rights of Citizenship.
 - **Article 11** Parliament to regulate the Right of Citizenship by Law.

Acquisition of Citizenship

The act provides for the acquisition of Indian citizenship after the commencement of the Constitution in five ways, i.e. birth, descent registration, naturalisation and incorporation of territory.

By Birth

Every person born in India on or after 26th January, 1950 shall be a citizen of India by law of soil, provided either or both of his/her parents are citizens of India at the time of his/her birth. But this law does not apply where his/her father is a diplomat of any other country or is an enemy alien at the time of his/her birth.

By Descent

Broadly, a person born outside India on or after 26th January, 1950, is a citizen of India by descent if his/her either of the parents is a citizen of India at the time of that person's birth.

By Registration

The prescribed authority may, on application, register as a citizen of India, any person who is not a citizen by virtue of Constitution or the provisions of the Citizenship Act.

This mode of acquiring citizenship is available to any of the following categories :

- Persons of Indian origin who are ordinarily resident in India for 7 years immediately before making an application for registration.
- Persons of Indian origin who are ordinarily resident in any country or place outside undivided India.
- Women who are or have been married to citizens of India. Minor children of persons who are citizens of India.

By Naturalisation

- Citizenship by naturalisation can be acquired by making an application in the prescribed manner. *The qualifications for naturalisation are as follows :*
 - He must be a person of full age and capacity.
 - He must not be a citizen of a country where Indian citizens are prevented from becoming citizens by naturalisation. He has renounced the citizenship of the other country.
 - He has either resided in India or has been in Government service for 12 months before the date of making the application for naturalisation or during 7 years prior to these 12 months, he has resided or has been in the Government service for not less than 4 years.
 - He must take an oath of allegiance.
 - He is of a good character.
 - He has an adequate knowledge of a language recognised in the eight schedule to the Constitution.

By Incorporation of Territories

If any new territory becomes a part of India, after a popular verdict, the Government of India shall specify the person of that territory to be the citizen of India.

Loss of Citizenship

The Citizenship Act, 1955 also lays down three modes by which an Indian citizen may lose his/ her citizenship. *These are renunciation, termination and deprivation*

Renunciation It is a voluntary act by which a person, after acquiring the citizenship of another country, gives up his Indian citizenship. This provision is subject to certain conditions.

Termination Takes place by operation of law when an Indian citizen voluntarily acquires the citizenship of another country. He automatically ceases to be an Indian citizen (Article 9).

Deprivation It is a compulsory termination of the citizenship of India obtained by registration or naturalisation, by the Government of India, on charges of using fraudulent means to acquire citizenship.

Overseas Citizen of India

- Government of India recognises those person and provide them overseas citizen of Indian card, *who have following credentials*
 - Who are now citizen of another country but was citizen of India at time of or at any time after commencement of Constitution.
 - Who were citizen of other country but were eligible to become citizen of India at time of commencement of Constitution.
 - Who is citizen of another country but belonged to a territory that became part of India.
 - Child/grand child/ great grand child of the above such citizens. Person of Pakistan and Bangladesh can't get an OCI. Recently, government has merged people of Indian origin card with overseas citizen card.

Non-Resident Indian

- A citizen of India, having Indian passport and staying temporarily in another country for purpose of employment, education for more than 6 months.
- NRIs whether they have acquired citizenship of other countries or not are eligible to vote. Eligible NRIs have to register by filling up form 6-A with electoral registration office. They must be physically present in their place of origin to exercise their franchise.

Pravasi Bharatiya Diwas

- It is celebrated on 9th January every year to recognise contribution of overseas Indian community in the development of India. 9th January is selected because on this date, Mahatma Gandhi returned to India from South Africa. This celebration provide opportunity to overseas citizen to interact with government and people of their homeland. Pravasi Bharatiya Diwas started from year 2003.
- The 14th Pravasi Bharatiya Diwas was held on 9th January, 2017 in Bengaluru (Karnataka). The event was attended by Portugal Prime Minister, Dr. Antonio Costa. The theme of this edition is "Redefining Engagement with the Indian Diaspora".

The Citizenship (Amendment) Bill, 2015

- Parliament of India passed the Citizenship (Amendment) Bill, 2015 on 9th January, 2015 to bring parity between provisions for Persons of Indian Origin (PIO) and Overseas Citizens of Indian (OCI) cardholders.
- Now, the benefits under the PIO scheme would be extended to OCI cardholders with recognition granted to their great grand children which was earlier limited to grand children.

FUNDAMENTAL RIGHTS

- The Fundamental Rights have been described in Articles 12 to 35, Part III of Indian Constitution.
- Fundamental Rights and Directive Principles have a common origin. Nehru Report 1928 incorporated some Fundamental Rights. The framers of Constitution derived inspiration from the Constitution of USA i.e. **Bill of Rights**. Part III of Constitution is rightly described as *Magna Carta* of India.
 - **Article 12** Definition of ‘State’.
 - **Article 13** Laws inconsistent with or in derogation of the Fundamental Rights.

Originally Fundamental Rights were seven in numbers viz

- i. Right to Equality
- ii. Right to Freedom
- iii. Right against Exploitation
- iv. Right to Freedom of Religion
- v. Cultural and Educational Rights
- vi. Right to Constitutional Remedies
- vii. Right to Property

Right to Equality (Articles 14 to 18)

- **Article 14** Equality before law and equal protection of law.
- **Article 15 Social Equality** It prohibits discrimination only on the ground of religion, race, sex, caste, place or birth.
- **Article 16** It entails to equality of opportunity in the matter of public employment.
- **Article 17** It deals with the abolition of untouchability.
- **Article 18** It deals with abolition of titles. Except military and academic.

Right to Freedom (Articles 19 to 22)

- **Article 19** It guarantees freedom to the citizen of India. *Following six fundamental freedoms are as follow*
 - i. Freedom of speech and expression (freedom of press, media).
 - ii. To assemble peacefully and without arms.
 - iii. To form association or unions.
 - iv. To move freely throughout the territory of India.
 - v. To reside and settle in any part of the territory of India.
 - vi. Freedom to choose any profession and business.
- **Article 20** It gives protection in respect of conviction for offences.
- **Article 21** It gives protection of life and personal liberty to both citizens and non-citizens. Articles 20 and 21 remain in force even during emergency.

- **Article 21 (A)** Right to education from age 6 to 14 years was made a Fundamental Right by 86th Amendment, 2002.
- **Article 22** It entails protection against arrest and detention in certain cases. This right is not available to an enemy alien and a person arrested or detained under a law providing preventive detention (detention of a person without trial).

Right Against Exploitation

(Articles 23 and 24)

- **Article 23** It entails prohibition of traffic in human beings and bonded labour, forced labour.
- **Article 24** No child below the age of 14 can be employed in factories or mines or in hazardous employment.

Right to Freedom of Religion

(Articles 25 to 28)

- **Article 25** Freedom of conscience and free profession, practice and propagation of religion.
- **Article 26** Freedom to manage religious affairs.
- **Article 27** Freedom as to payment of taxes for promotion of any particular religion.
- **Article 28** It prohibits any religious instruction in educational institutions wholly maintained by state funds. In other instructions aided and recognised by the state, every person will be free not to participate in religious instruction or worship.

Cultural and Educational Rights

(Articles 29 to 30)

- **Article 29** It allows every community to conserve its distinct language, script or culture. It also bars disallowing a citizen admission to any educational institution maintained or aided by the state only on grounds of religion, race, caste or language.
- **Article 30** Right of minorities to establish and administer educational institutions.

Right to Property (Article 31)

- **Article 31** Right to property, repealed by the 44th Amendment Act, 1978. Now, it is only a legal right.

Right to Constitutional Remedies

(Article 32)

- **Article 32** It provides the right to the citizens to move to the Supreme Court by appropriate proceedings for the enforcement of the Fundamental Rights and it empowers the Supreme Court to issue directions or writs for the enforcement of the Fundamental Rights.
- The writs include Habeas, Corpus, Mandamus, Prohibition, Quo-warranto and Certiorari, Dr BR Ambedkar termed the Right to Constitutional Remedies as the *heart and soul of the Constitution*.

Forms of Writs

Habeas Corpus

- It literally means 'have the body' i.e. to be produced before the court.
- This kind of writ is issued to protect personal liberty of an individual against the arbitrary action of both the state and private individuals. The aggrieved person can even claim for compensation against such action.

Mandamus

- It literally means 'command'.
- This kind of writ is issued against a public authority or an officer and inferior courts for compelling the authority to do a particular work that it ought to do but has not done. This writ cannot be issued against the President and the Governors. Private rights cannot be enforced by the writ of the Mandamus.

Prohibition

- It means 'to forbid'.
- This kind of writ is issued by the higher courts to the lower courts or the quasi-judicial bodies when the latter exceed their judicial authority.
- The objective is to keep the inferior courts or the quasi-judicial bodies within the limits of their respective jurisdiction.
- The difference between 'Mandamus' and 'Prohibition' is that while the former can be issued against judicial as well as administrative authorities, the latter is issued only against the judicial or quasi-judicial authorities.

Certiorari

- It means 'to be certified'.
- This writ is issued to quash the order of a lower court or the decision of a tribunal in excess of its jurisdiction. The purpose of this writ is to secure that the jurisdiction of an inferior court or tribunal is properly exercised and that it does not usurp the jurisdiction, it does not possess.

Quo Warranto

- It literally means 'by what authority or warrant'.
- This kind of writ is issued to ensure that the person holding a public office is qualified to hold the office.
- Besides the normal writs issued on violation of Fundamental Rights, there has been a progressive strengthening of the Fundamental Rights by the judiciary.
- The principle of 'Locus Standi' applies only to the writs of Mandamus, Prohibition, Certiorari i.e. only aggrieved person is entitled to seek these writs.

Suspension of Fundamental Rights

- The Constitution contains provisions for automatic suspension of the Fundamental Rights under certain circumstances, e.g. during the National Emergency under Article 352 (i.e. war or external aggression).
- Under **Article 358**, when National Emergency is proclaimed on the grounds of war or external aggression (and not armed rebellion), the Fundamental Rights under Article 19 are automatically suspended.
- The Constitution empowers the President, under **Article 359** to suspend any or all the Fundamental Rights by issuing a separate proclamation during a National Emergency. The 44th Amendment Act, 1978 prohibits the suspension of **Articles 20 and 21** (protection in respect of conviction for offences and protection of life and personal liberty, respectively) even during a National Emergency.

DIRECTIVE PRINCIPLES OF STATE POLICY (DPSP)

- Dr BR Ambedkar described the DPSPs as 'novel feature of the Constitution'. DPSPs are constitutional instructions or guidelines to state in the legislative, executive and administrative affairs. It provides the social and economic base of a genuine democracy. Granville-Austin has described the "FR's and DPSP as conscience of Constitution".
- The purpose of directive principles of state policy is to lay down positive instructions which would guide state policy at all levels.
- However, on the basis of their content and direction, they can be classified into three broad *viz* socio-economic principles, Gandhian and liberal principles.

Socio-Economic Principles (Articles 38 and 39)

- To provide adequate means of livelihood.
- To prevent concentration of wealth and means of wealth and material resources.
- To secure equal pay for equal work for both men and women.
- To ensure a decent standard of living and leisure for all workers.
- To provide necessary opportunities and facilities to children and youth to prevent their exploitation.
- To make efforts to secure the right to work, education and public assistance in case of unemployment, sickness, old age etc.